

23NWCV01916 23NWCV01916

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-09-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CP%2C09%2F01%2F2026

Source SHA-256: b53f03a31bfc3868428cc237241dfee539f772122e4fcb80cbe40c2a77ea33e0

Case Number: 23NWCV01916 Hearing Date: September 1, 2026 Dept: P

MONROY-ROMAN v. GENERO, ET AL.

CASE NO.: 23NWCV01916

HEARING: 9/01/2026 @ 9:30 AM

#12

TENTATIVE ORDER

I.

Plaintiff Noemi Monroy-Roman's motion to compel further deposition and production of documents of Defendant Auto Company XXIII's PMQ is CONTINUED to Thursday, September 17, 2026 at 9:30 AM in Dept. P.

II.

The parties are ORDERED to apprise the Court of any updates regarding the issues raised in this motion through declarations or briefing by September 14, 2026.

Moving party to give notice.

Plaintiff Noemi Monroy-Roman (Plaintiff) moves to compel further deposition and production of documents of Defendant Auto Company XXIII dba Autonation Chrysler Dodge Jeep Ram Valencia's (Defendant) person most qualified (PMQ).

Background

Plaintiffs filed this action against Defendants Rosita Genero and Diego Genero on June 22, 2023 and Does 1 to 50. The complaint alleges that on or about October 21, 2022, Plaintiffs were travelling Northbound on I-710 approaching Frontage Road and Miller Way when Defendant Rosita Genero, driving behind Plaintiffs, struck Plaintiffs' vehicle from behind, resulting in injuries. (Complaint, ¶¶ 8-9.) The complaint asserts two causes of action against all defendants: (1) negligence and (2) negligence per se.

On December 6, 2024, Plaintiffs requested dismissal without prejudice as to Defendant Diego Genero. On the same date, Defendant Diego Genero was dismissed without prejudice.

On May 5, 2025, Plaintiffs filed two Amendments to Complaint replacing Doe 1 with Autonation.com, Inc and Doe 2 with Autonation, Inc.

On March 5, 2026, the Court heard and took Plaintiff's motion to compel Defendant to produce its PMQ for deposition off calendar as moot after the parties failed to meet and confer. (Order, 3/5/26.)

Discussion

On August 11, 2026, the Court held an Informal Discovery Conference (IDC) at Plaintiff's request regarding the issues raised by the instant motion.

On August 14, 2026, when this motion first came on for hearing, the Court continued the hearing to allow the parties more time to work toward an informal resolution based on the Court's guidance at the IDC. The Court requested further briefing or declarations regarding any updates following the IDC. As of today's date, the Court has not received any briefing.

Without any updates, the Court is not aware of whether the issues raised in this motion remain in full, in part, or are moot. The Court finds a continuance of this motion to ascertain what remains at issue.

Accordingly, Plaintiff's motion to compel further deposition and production of documents of Defendant's PMQ is CONTINUED to Thursday, September 17, 2026 at 9:30 AM in Dept. P.

The parties are ORDERED to apprise the Court of any updates regarding the issues raised in this motion through declarations or briefing by September 14, 2026.